

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PUERTO RICO

Complete Community Opposition How-To

This guide uses the terms and channels you'll actually run into in Puerto Rico — civil disobedience and community power, federal environmental law (NEPA, the Clean Air and Water Acts, Superfund), US courts and federal agencies, the island's renewable-energy law and community solar, the diaspora — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

For sixty years the US Navy used up to three-quarters of the island of **Vieques** — expropriated from its people in the 1940s — as a live bombing range, raining ordnance beside a community of some ten thousand. Then, on **19 April 1999**, a misfired 500-pound bomb killed a civilian guard, **David Sanes**, and Puerto Rico erupted. What followed was one of the great people-power victories of the hemisphere: a campaign of **nonviolent civil disobedience** that set up fourteen protest camps on the bombing range and **occupied it for over a year**, halting the exercises; tens of thousands marching in San Juan in the largest protest in the island's history; over a thousand arrests; and a coalition so broad — fishers, housewives, environmentalists, church groups, students, every political party, and the mainland diaspora — that it could not be dismissed. Under that pressure, on **1 May 2003**, the **Navy stopped the bombing and left Vieques**. A small community had forced the most powerful military on earth off its island.

The Vieques campaign that forced the US Navy off its island drew on the genuinely strong toolkit of a US territory whose people are citizens by birth, running through community power and the law. **Federal environmental law** — NEPA, the Clean Air and Water Acts, Superfund — applies here, enforced through the **EPA** and the **US courts**; protest, petition, and litigation are lawful and battle-tested. The island's **renewable-energy law** and its proven **community solar** — built by Casa Pueblo in Adjuntas, which also beat back open-pit mining and won a protected forest — offer a path to an energy future. And a deep **organising and civil-disobedience tradition**, a free press, and a **vast mainland diaspora** amplify every fight. But these tools have real limits, and this guide states them plainly. Vieques's land was not returned to its people but handed to a federal wildlife agency, and the former range became one of the largest **Superfund sites** in the US, its **cleanup dragging on** for decades amid a legacy of asthma and cancer. A **federal fiscal-control board** constrains the island's own planning; a contested, privatised, fossil-dependent grid — the one that collapsed in Hurricane María — makes the energy transition a hard fight; outside capital and tax incentives drive coastal gentrification; and the territorial status itself limits self-determination. So aim for what these proven tools can deliver, and settle in for the long fight the status makes it.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and dependencies, and a chain breaks at its weakest link. A Puerto Rican fight turns on **federal environmental law** and the **US courts and agencies**; on the island's **energy law and community solar**; on the **coast and karst** protections; and on **community power** — the organising, the civil disobedience, the press, and the diaspora — that Vieques and Casa Pueblo proved can win. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's a polluting project or a contamination legacy, federal environmental law and the US courts genuinely bite** — the EPA, NEPA, Superfund, the Clean Air and Water Acts.
- **If it's about energy, the island's renewable law and community solar offer a real alternative to build toward, not just a project to oppose.**
- **If it threatens the coast or karst, those protections and the public's love of them are strong levers.**
- **If the fiscal board, the privatised grid, or the status is in the way, expect a hard, long fight** — but community power, as Vieques proved, can move even the immovable.

Read the whole guide once before you move. Two habits run through it: **combine community power with the law** — the organising and civil disobedience of Vieques with the federal and legal channels a territory affords — and **build alternatives from below**, as Casa Pueblo did. That's how Puerto Rico wins.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Puerto Rico has its own permitting and environmental agencies, but crucially **federal environmental law applies** — NEPA (environmental review of federal actions), the Clean Air and Water Acts, and Superfund (contaminated-site cleanup) — enforced through the **US EPA** and the **federal and Puerto Rican courts**. Energy decisions run through the island's utility and energy bureau under the island's **renewable-energy law**. A **federal fiscal-control board** constrains major spending and planning. And federal agencies (the military, Fish and Wildlife, FEMA) hold power over specific lands and disasters. Know which decision — local, federal, or judicial — you can reach, and aim there.

How a Project Moves — and Where You Jump In

Environmental review and permitting. A project needs its permits and, for federal actions, **NEPA review**. *Your opening:* comment, put your objections on the record, and attack the review's flaws.

The federal environmental hooks. A polluting or contaminating project engages the **Clean Air/Water Acts and Superfund**. *Your opening:* the EPA and the federal courts, reachable by citizens.

Energy and the alternative. *Your opening:* press the island's renewable law and build community solar, offering a better path (Casa Pueblo).

On the ground. *Your opening* — *the Vieques lever:* organised community power and, where warranted, nonviolent civil disobedience.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — the utility, the developer, federal agencies, outside capital drawn by tax incentives. **What federal law it engages** — because NEPA, the Clean Air/Water Acts, and Superfund are sharp, citizen-enforceable tools. **What it still needs** — the permit, the review, the funding, the fiscal board's sign-off: whatever's missing is the soft spot.

Who's Supposed to Be Watching

Each is an ally or an arena. The **EPA** and the federal environmental laws reach polluters and contamination. The **US and Puerto Rican courts** review permits and enforce the laws — reachable by citizens. The island's **energy bureau** governs the grid. And Puerto Rico's **deep organising tradition, its community organisations (like Casa Pueblo), its free press, its scientists, and its vast diaspora** are the forces that reach furthest — the combination that won Vieques.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether federal environmental law is engaged, whether community power can be organised, and whether the fiscal board and status stand in the way.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Comment / objections (NEPA / permits)	15–35%	during review	low	On record; conditions or a redo
Federal environmental law (EPA / courts)	30–55%	months–yr	low–mod	Pollution reached; cleanup forced
Superfund / contamination claim	25–50%	years	low	Cleanup ordered (slowly)
Energy law + community solar	30–55%	months–yr	mod	Alternative built; project displaced
Coast / karst protection	30–55%	varies	low	Coastal project barred or moved
Organised community + civil disobedience	30–60%	months–yr	low	Project stopped (Vieques)
Diaspora + national attention	30–55%	months–yr	low	Federal pressure; project dropped
Everything together (federal hook, community power)	45–70%	1–4 yr	mod	Stopped, cleaned up, defended, built
Everything together (fiscal board / status in the way)	25–50%	1–4 yr	mod	Delayed; forced; partial

The levers that move the needle most are **federal environmental law and the US courts**, the **energy law and community solar**, and **organised community power**, amplified by the diaspora. Vieques shows the ceiling (the Navy forced out) and the honest floor (the cleanup drags, the status constrains). So aim for a project stopped, a cleanup forced, the coast defended, an energy future built — and endure the status.

On cost: organising, commenting, and civil disobedience are cheap; the US courts and the EPA are citizen-reachable; and the diaspora extends the fight to the mainland. The great strength is a proven organising tradition plus access to federal environmental law — the combination Vieques and Casa Pueblo used to win.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this NEPA flaw, this Clean Air violation, this Superfund site, this coastal permit — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the utility or developer, any federal agency, and the outside capital behind it.

2. Where is it, and what does it touch? Map it over the **coast, coral, karst**, communities, and any contamination legacy. **A coastal or karst area, and a pollution or contamination hook, are your sharpest levers** — federal environmental law reaches them.

3. What federal law does it engage? NEPA (federal action)? The Clean Air or Water Act (pollution)? Superfund (contamination)? These are your citizen-enforceable tools.

4. What stage is it at, and what's the next deadline? Is a review or permit open? Has it issued (opening the courts)? Is a cleanup owed? Some steps are time-bound.

5. Who's your coalition — including the diaspora? Neighbouring and fenceline communities, community organisations, scientists, and the mainland diaspora. Vieques united an entire people and its diaspora.

What this looks like in real life. A community faces a polluting plant, a coastal mega-development, or a contamination legacy, backed by the utility or outside capital. The five questions yield: a developer or agency; the coast/karst or a pollution hook (the levers); the federal law it engages; a review or permit in process; and a coalition reaching to the diaspora. That's the Vieques/Casa Pueblo pattern — use the federal environmental hooks and the courts, build the alternative, and organise community power.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the environmental review (NEPA or local), the permits and conditions, the pollution and contamination data, the energy plans. Federal and Puerto Rican transparency laws let you demand what isn't public. Then read the review for flaws — an understated impact, an ignored alternative, a pollution or contamination risk brushed over.

Layer two: the ground truth. Dated, located photographs and video of the coast, karst, communities, and any contamination — baseline images most of all — and the testimony of affected and fenceline residents. Marshal the **science** on pollution, health, and the coast, as Casa Pueblo marshalled it against the mine.

Layer three: the map of harm and federal hooks. Lay the project over the coast, karst, communities, and contamination, so the harm — and the federal law it engages — is undeniable. Walking into the EPA, the courts, or the press with the review flaws, the science, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental review, permits, pollution/contamination data, energy plans** — from the agencies; force out the rest under transparency laws (8A).
- **The federal hooks** — which of NEPA, the Clean Air/Water Acts, or Superfund the project engages.
- **Ownership and financing** — the utility, developer, federal agency, and outside capital.
- **The harm-and-hooks map** — coast, karst, communities, and contamination, laid over the project.

- **Dated site evidence, science, and named testimony** — photographs marked with date and place, health and pollution data, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; organised community power gives you power — the Vieques and Casa Pueblo model. Build in four moves.

Start with a broad, united coalition. Vieques's strength was breadth beyond measure — fishers, housewives, church groups, students, every party, and the diaspora, united around one demand. Build that broad, non-partisan front, rooted in the fenceline and affected communities.

Draw on the organising tradition — and the diaspora. Puerto Rico has a deep organising and civil-disobedience tradition, and a vast mainland diaspora that can carry the fight to Washington and the national press. Reach the community organisations, the scientists, and the diaspora networks.

Build the alternative from below. Casa Pueblo didn't only stop the mine — it built a protected forest and community-owned solar in its place. Where you can, offer a better path (community solar, conservation), which is harder to defeat than pure opposition.

Build to last — and consider disciplined civil disobedience. Puerto Rican fights run for years against the fiscal board and the status. Build clear roles, a secure archive, a way to decide together, and a plan for the toll — and, where warranted, a **disciplined, nonviolent civil-disobedience** strategy, planned collectively and with legal advice, as Vieques did.

STEP 4: LEGAL & FEDERAL CHALLENGES

Puerto Rico's sharpest levers are federal environmental law, the US courts, and organised community power.

Federal Environmental Law and the Courts

The distinctive Puerto Rican legal strength: **federal environmental law applies**, and is **citizen-enforceable**. Use **NEPA** to challenge a flawed federal environmental review; the **Clean Air and Water Acts** against a polluter (with their citizen-suit provisions); and **Superfund** to force cleanup of a contaminated site — through the **EPA** and the **federal and Puerto Rican courts**. A polluting or contaminating project is on sharp federal ground here.

The Energy Law and Community Solar

For energy fights, the island's **renewable-energy law** and its proven **community solar** (Casa Pueblo) let you press for and build a better path — displacing a fossil project with a distributed, community-owned alternative, and pushing the utility and energy bureau toward it.

The Coast, the Karst, and Community Power

Coastal and karst protections, and the public's fierce attachment to them, are strong levers against coastal mega-development. And behind all the legal tools stands the Vieques lever: **organised community power and disciplined nonviolent civil disobedience**, which can stop a project the courts alone might not.

The Honest Limits

Straight talk: the federal tools and community power are real and proven, but the **fiscal board** constrains planning and funding, the privatised grid and fossil interests resist the transition, the Vieques cleanup shows federal remedies can drag for decades, and the status limits self-determination. So use the strong tools — federal environmental law, the courts, the energy law and community solar, the coast and karst, and community power — and count a project stopped, a cleanup forced, the coast defended, and an energy future built as wins, over a long fight.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Pollution becomes a federal violation. Not "we oppose the plant" but *"this violates the Clean Air Act, and the EPA and the courts can be made to enforce it."*

Contamination becomes a cleanup duty. *"This is a contaminated site — Superfund requires it cleaned, and we will press until it is,"* as Vieques's people press.

A fossil project becomes a case for the alternative. *"We don't need this plant — the island's renewable law and community solar offer a better, proven path."*

The harm becomes a national and diaspora cause. *"Our coast, our health, our island — and the millions of Puerto Ricans on the mainland who will not stay silent."*

Match it to the venue: the pollution to the EPA and the citizen suit; the contamination to Superfund; the review flaw to NEPA and the courts; the energy fight to the bureau and community solar; the cause to the press and the diaspora.

STEP 5: MEDIA STRATEGY

In Puerto Rico, national and diaspora attention is a decisive lever — Vieques became an international cause, and the mainland diaspora reaches Washington and the US press. A free press and a deep organising tradition make the media front central.

Lead with the people, the coast, and the health, not procedure. Not "the NEPA review was deficient" but "our coast, our health, our island — and the bombs, the coal ash, the poison we're told to live with." Use your strongest material: dated photographs, the science, the map, community voices, and any federal or court action banked.

Work several audiences at once — reach the diaspora and the mainland. Local and national press build the island's attention; the diaspora and the US national media reach Washington, the federal agencies, and the courts, where the pressure bites. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything, especially on health science. And protect people — plan any civil disobedience with legal advice, and let the community lead its own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the agency / EPA).

Subject: Request for records — [project].

"We, residents of [place], request the environmental review, the permits and conditions, and the pollution/contamination data for [project] at [location]. [Contact.]"

8B — Objection in the environmental review.

Subject: Objection — [project] review.

"We, residents of [place], object to [project]: [it pollutes our air/water; it damages our coast/karst; the review understates the harm]. We ask that it be refused. [Attach evidence.]"

8C — To the EPA (federal environmental law).

Subject: Clean Air/Water Act / Superfund concern — [project / site].

"We report that [project/site] at [location] [violates the Clean Air/Water Act / is a contaminated site requiring cleanup]: [specifics]. We ask the EPA to act, and reserve the right to a citizen suit. [Attach evidence.]"

8D — To a lawyer (federal courts).

Subject: Possible federal action — [project].

"Our community faces [project], which [violates federal environmental law / rests on a flawed NEPA review]. We've gathered [the review, the science, photographs]. We ask your advice on a citizen suit or a NEPA challenge. [Contact and evidence summary.]"

8E — On energy / the alternative (to the bureau / utility).

Subject: A community-solar alternative to [project].

"We, residents of [place], oppose [the fossil project] and call for the island's renewable law and community solar to be pursued instead, as Casa Pueblo has proven possible. [Attach the alternative.]"

8F — To federal officials / the diaspora.

Subject: [Project] and Puerto Rico — we ask for your attention.

"We are the community affected by [project] at [location]. It [pollutes / contaminates / threatens our coast], and federal law is engaged. We ask federal officials to act and the diaspora to stand with us, as with Vieques. [Contact and evidence summary.]"

8G — Letter to the press (island and mainland).

Subject: [Community] moves to protect its coast and health from [project].

"For generations the people of [place] have lived by [this coast]. Now [project] threatens [our air, our water, our health]. We can provide photographs, the science, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can win this — here's how.

"[Project] threatens [our coast, our health, our island]. At Vieques, a united people forced out the US Navy; at Adjuntas, Casa Pueblo stopped a mine and built its own solar. With federal environmental law, the courts, community power, and the diaspora behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and the federal law it engages — NEPA, Clean Air/Water, Superfund.** That's your sharpest legal hook.
2. **Object in the environmental review (8B), and alert the EPA (8C).**
3. **Request the documents (8A), and read the review for flaws.**
4. **Photograph everything, with dates and places, and marshal the health/pollution science.**
5. **Get a lawyer for a citizen suit or NEPA challenge (8D), and press the energy alternative (8E).**
6. **Build a broad coalition, reach the diaspora, and go public (8G/8H) — and consider disciplined civil disobedience.**

Even lean, those six use the federal hooks, the courts, community power, and the diaspora — the Vieques and Casa Pueblo template.

WHEN THE SYSTEM IS TILTED

Puerto Rico's tools are real, but the status tilts the field, and you must plan for it.

When the fiscal board constrains. It limits the island's own planning and funding. Work the federal environmental laws and the courts, which the board doesn't control, and press the alternative.

When the grid's privatisation and fossil interests resist. Build the community-solar alternative from below, as Casa Pueblo did, and press the energy law — offering a path, not just opposition.

When the cleanup drags. Vieques's Superfund cleanup shows federal remedies can crawl. Keep the pressure and the attention on, and hold the agencies to their duty.

When the status limits self-determination. Use the genuine tools the territory does afford — federal environmental law, the courts, community power, the diaspora — which Vieques and Casa Pueblo proved can win.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Puerto Rico has real concerns about the capture of the grid, permitting, and disaster funds by outside capital and connected interests, so this matters.

How to spot it. Permits against the evidence; reviews written for the proponent; contracts and incentives for outside capital; benefits to the connected while fenceline communities bear the pollution.

Who's supposed to guard against it. The **EPA** and federal environmental enforcement reach polluters. Federal and Puerto Rican **auditors and prosecutors** examine public money and conduct. The **courts** can quash a tainted permit. And Puerto Rico's **investigative press and civil society** have exposed captured deals — as they did in the protests that toppled a governor.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what federal and local law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the EPA, the auditors, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the federal environmental challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the federal hooks aim it; a broad, organised community and the diaspora are the muscle; the EPA, the courts, the energy law, and community solar press the case; the press and the diaspora raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project and the federal law it engages; object in the review; alert the EPA; request the records; photograph the baseline and gather the science; build a broad coalition and reach the diaspora.

In the thick of it (months–years): bring a citizen suit or NEPA challenge; press the energy alternative and community solar; open the island-and-mainland media front; consider disciplined civil disobedience.

The long haul (years): carry the litigation and the cleanup pressure; build the alternative; keep the coalition and the diaspora engaged; hold the line for a project stopped, a cleanup forced, the coast defended, and an energy future built.

FINAL ASSESSMENT

Stopping a destructive project in Puerto Rico can be done — a united people forced the US Navy off Vieques, and a mountain town stopped a mine and built its own solar future. Hold both truths. Puerto Rico's tools are real and proven: federal environmental law that applies and is citizen-enforceable; the US and Puerto Rican courts; the island's renewable law and community solar; coast and karst protections; and a deep organising tradition, a free press, and a vast diaspora. And the constraints are real: a federal fiscal-control board, a contested privatised grid, cleanups that drag for decades, coastal gentrification, and a territorial status that limits self-determination.

Here's the discipline that wins. Find the federal hook — NEPA, the Clean Air or Water Act, Superfund — and use the EPA and the courts, which apply here and are reachable by citizens. Press the island's renewable law and build the community-solar alternative from below, as Casa Pueblo did, so you offer a path and not only a refusal. Defend the coast and karst. And behind it all, organise the broad, united community power — and, where warranted, the disciplined nonviolent civil disobedience — that forced out the Navy, and carry the fight to the mainland through the diaspora. Endure the status and the fiscal board, and count a project stopped, a cleanup forced, the coast defended, and an energy future built as wins. That's what Vieques and Casa Pueblo did — community power and the law together. So can you.